MANDAS MARIKANDA
versus
RUTH MAKOMBE
and
ZIMBABWE WOMEN'S MICROFINANCE BANK LIMITED
and
ABRAHAM K MAGUCHU

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 12 and 17 March 2026

Urgent Chamber Application

A Zvarevashe with him T Zintu, for the applicant
D. Mundiya, for the respondents

MAMBARA J:

[1] This is an urgent chamber application for an interim interdict, brought in terms of rule 60 of the High Court Rules, 2021, in which the applicant seeks an order stopping a disciplinary hearing pending the determination of a declaratory application lodged under case number HCH1145/26.

[2] The applicant's final relief, as framed, is that the respondents "be and are hereby interdicted from proceeding with the disciplinary hearing against the applicant pending the determination" of HCH1145/26, with costs against the first respondent. The interim relief mirrors that final relief in substance.

[3] The application is triggered by a notice of suspension and notice of disciplinary hearing issued on 4 March 2026, placing the applicant on suspension with pay and benefits and convening a disciplinary hearing for 11 March 2026. The disciplinary authority or hearing officer is cited as Mr Abraham K. Maguchu, who is the third respondent in these proceedings.

[4] The applicant's case is anchored on an earlier magistrates' court interdict granted on 1 August 2025, which required the first respondent to "observe corporate governance principles and stop interfering with" the applicant's "scope of work."

[5] In the urgent chamber application, the applicant contends that (i) she has an extant court order barring the first respondent from interference, (ii) notwithstanding that order, the first respondent sought to suspend her and to press forward with disciplinary proceedings, and (iii) unless this court intervenes urgently, the pending disciplinary process will render her pending declaratory proceedings academic.

The factual setting giving rise to the dispute

[6] It is common cause from the papers that the relationship between the applicant and the second respondent is one of employment, the applicant being employed as Chief Executive Officer of the second respondent.

[7] The first respondent, who is chairperson of the board of directors of the second respondent, deposes to the opposing affidavit in her personal capacity and on behalf of the second respondent, contending, among other points, that the magistrates' court order does not prohibit lawful disciplinary action, and that the disciplinary hearing was expressly authorised by a board resolution.

[8] The first respondent further asserts that she had not been served with the earlier magistrates' court proceedings or the court order and that she only saw the order for the first time when served with the present urgent chamber application, and she indicates that steps are being taken to seek rescission of that order.

[9] A further feature of the record is that the board itself resolved (through its non-executive directors) to oppose the litigation in both HCH1145/26 and HCH1146/26, and authorised the first respondent, in her capacity as board chair, to represent the second respondent in the litigation.

[10] The applicant's narrative (in the declaratory application) also places emphasis on the history of friction between herself and the first respondent, allegedly dating back to competition for the position of Chief Executive Officer and escalating to the obtaining of the magistrates' court interdict.

The point *in limine* and the parties' oral submissions

[11] At the commencement of the hearing, Mr Mundiya, for the first and second respondents, raised a point in limine on jurisdiction, and I allowed him to address the court first.

[12] The respondents' submission was direct: the matter is a labour dispute between an employer and an employee; it concerns suspension and an impending disciplinary hearing; and, accordingly, it falls within the exclusive province of the labour dispute resolution framework, in particular the Labour Court's first-instance jurisdiction as settled by the Supreme Court. Counsel relied on the Supreme Court decision in *TN Harlequin* v *Matsvimbo* SCB 84/22 and on the Labour Act [*Chapter 28:01*] provisions (s 89(6) read with s 2A(3)), and submitted that the matter ought to be struck off the roll for want of jurisdiction, with costs on a higher scale.

[13] In response, Mr Zvarevashe, for the applicant, submitted that the present matter is distinguishable from TN Harlequin. He argued that the issue is not whether the applicant committed misconduct or whether she should be charged, but whether—given the extant civil court judgment barring interference with the applicant's work—the very person interdicted is permitted to interfere with the applicant's work "up to being the person who suspends and charges her." Counsel submitted that this is not a purely labour matter but one founded on the enforcement and protection of rights flowing from the magistrates' court order, and that the urgent interdict is sought to safeguard a declaratory application pending before this court. He further submitted that one cannot lodge an application in the High Court and then seek protective interim relief from the Labour Court, contending that this court has inherent jurisdiction to entertain the matter.

[14] In reply, Mr Mundiya submitted that the applicant's attempt to characterise the matter as not labour-related contradicts the substance of the interim and final relief sought, both of which are tailored to interdict disciplinary proceedings. Counsel added that the first respondent acted as an authorised representative of the employer (the second respondent) and not in her personal capacity, and reiterated that the first respondent was unaware of the magistrates' court order until it was attached to the present application.

[15] The crisp question for determination is therefore whether this court has jurisdiction in the first instance to grant interim relief stopping an employer's disciplinary proceedings against an employee, where the employee seeks to found that relief upon an earlier magistrates' court interdict against the board chair and has also instituted a declaratory application in this court.

The applicable law on jurisdiction in labour matters

[16] The jurisdictional landscape on the interface between this court's general jurisdiction and the Labour Court's specialised jurisdiction is no longer in doubt.

[17] In *TN Harlequin Luxaire Ltd* v *Masvimbo M & 18 Ors* 22-SC-084, the Supreme Court considered whether the High Court, purporting to act under s 14 of the High Court Act [*Chapter 7:06*], could properly issue a declaratur in a matter that was "purely labour in nature," in light of s 2A(3) of the Labour Act [*Chapter 28:01*] (Labour Act prevails over any inconsistent enactment) and s 89(6) (no court other than the Labour Court has jurisdiction in the first instance to hear and determine matters referred to in s 89(1)). The court held that the Labour Court has exclusive first-instance jurisdiction in labour matters, and that the High Court erred in assuming jurisdiction in a purely labour dispute.

[18] The Supreme Court in TN Harlequin further rejected as misconceived the contention (often raised) that the High Court must entertain labour matters because only it can grant declarators. The court observed that the Labour Court routinely issues declaratory-type relief in its daily operations, and emphasised that the existence of s 14 of the High Court Act does not license litigants to bypass the Labour Court where the dispute is, in substance, governed by labour legislation and mechanisms.

[19] That position has been reaffirmed and applied in the High Court. In *Unifreight Africa Ltd* v *Mukarati N & Anor* 25-HH-436, the court declined jurisdiction where the dispute called for the determination of an employment relationship and other employment-related questions, holding that these matters fell within the Labour Court's exclusive jurisdiction at first instance under ss 2A(3) and 89(6) of the Labour Act, and that the High Court cannot issue a declaratur in respect of labour and employment matters simply because the relief is dressed as a declaration under s 14.

[20] A further, related principle is that internal disciplinary proceedings (though less formal than courts of law) are nevertheless expected to comply with the requirements of fairness and the *audi alteram partem* rule. That fairness enquiry is ordinarily undertaken within the labour dispute resolution terrain: first within the disciplinary process itself, and, where appropriate, through the statutory labour remedies. *Farm Community Trust* v *Claudious Chemhere* SC

22/13 is authority, among others, for the proposition that disciplinary proceedings cannot, under the guise of flexibility, violate basic fairness with impunity.

Analysis

[21] The starting point is that jurisdiction is determined by the substance of the dispute and the nature of the relief sought, not by the label that a litigant prefers to attach to the cause.

[22] Here, both the interim and final relief are aimed at one outcome: to stop a disciplinary hearing initiated by the applicant's employer from proceeding. The immediate juridical incident complained of is the applicant's suspension and the convening of disciplinary proceedings.

[23] Suspension from employment (with or without pay) and the conduct of disciplinary proceedings are classic labour and employment incidents regulated by labour law principles and, where applicable, codes of conduct and the Labour Act machinery. They form part of "matters concerning employment" in the ordinary sense in which that term is understood in labour jurisprudence and practice.

[24] It follows that, unless there is some legally cognisable basis upon which the dispute ceases to be one of employment and labour, the matter falls within the exclusive first-instance jurisdiction of the Labour Court, as settled by *TN Harlequin Luxaire Ltd* v *Masvimbo M & 18 Ors 22*-SC-084 and applied in *Unifreight Africa Ltd* v *Mukarati N & Anor* 25-HH-436.

[25] The applicant's attempt to relocate the dispute into this court's jurisdiction rests on the magistrates' court interdict against the first respondent, barring interference with the applicant's "scope of work."

[26] Even accepting, for present purposes, that the magistrates' court order is extant and operative (its rescission or otherwise being a separate enquiry), the question remains: does that order transform the present proceedings into a non-labour dispute? In my view it does not.

[27] First, the order—on its face—interdicts the first respondent from "interfering" with the applicant's scope of work and directs observance of corporate governance principles. It does not expressly purport to immunise the applicant from lawful employment oversight, including

disciplinary accountability, nor does it purport to interdict the employer's statutory and contractual disciplinary processes.

[28] Second, and more fundamentally, the applicant's relief is not framed as contempt proceedings to enforce the magistrates' court order, nor as a narrowly tailored restraint against a defined form of "interference" by the first respondent. Instead, the applicant seeks a wide interdict against the continuation of the disciplinary hearing itself—an employment process—pending the outcome of a High Court declaratory application.

[29] The gravamen of the dispute therefore remains labour-related: whether disciplinary steps should proceed, and whether they were properly initiated. That is the very type of terrain which TN Harlequin holds the High Court must not enter in the first instance.

[30] Third, the applicant's submission that the Labour Court "has no jurisdiction to entertain" declarators or interdicts of the present kind cannot be sustained in the face of TN Harlequin, which expressly puts to rest the notion that the High Court must assume jurisdiction merely because a party seeks declaratory-type relief.

[31] I turn to the aspect that, in the course of oral argument and upon a careful reading of the record, caused disquiet: the first respondent's prominent role in launching the charges and the suspension, in circumstances where there has been prior confrontation between herself and the applicant that culminated in litigation and a court interdict.

[32] Even on the version advanced by the applicant, the existence of historical tension between the applicant and the first respondent is plain from the papers. In such circumstances, it is undesirable—speaking purely from the standpoint of perception, institutional harmony and the minimisation of allegations of personal vendetta—for disciplinary steps against the applicant to be driven in a manner that places the first respondent "in the lead," if alternative, less contentious governance arrangements are reasonably available.

[33] That said, concerns about bias, conflict of interest, improper motives, or a misconceived reliance on a prior interdict are matters that can be raised before the disciplinary tribunal itself. The applicant has the right to be heard, to place her position before the hearing officer,

and—if the point is well taken—to seek appropriate procedural directions (including, where warranted, challenges framed around fairness).

[34] The disciplinary process is the primary forum to ventilate those concerns because it is the process that is seized with the dispute as an employment incident. If, thereafter, a legally recognised labour grievance arises, it may be pursued through the labour dispute mechanisms, and not by inviting this court to assume first-instance jurisdiction over matters the Labour Court is constitutionally and statutorily designed to handle.

[35] The conclusion I therefore reach is that the present urgent chamber application, whatever its urgency in a practical sense, invites this court to intervene in a disciplinary hearing—a labour matter—in the first instance. That invitation is barred by the now settled jurisprudence.

[36] Having upheld the point in limine on jurisdiction, it is unnecessary, and improper for me to make definitive pronouncements on the merits of the applicant's asserted right, urgency, or the balance of convenience. The court cannot assume jurisdiction "for a moment" in order to decide those questions.

Disposition

[37] In the result, the point *in limine* is upheld.

[38] As to costs, the first and second respondents asked for costs on a higher scale, contending that the application is meritless. The applicant resisted that. While I consider the application misconceived for want of jurisdiction, the record shows that the applicant approached this court against the backdrop of an extant magistrates' court order and an evidently fraught governance relationship between the protagonists. In my view, those features render the approach ill-advised, but not so frivolous as to justify a punitive costs order at this stage.

Accordingly, I make the following order:

1. The point *in limine* that this court has no jurisdiction to hear the matter is upheld.
2. The urgent chamber application is struck off the roll for want of jurisdiction.
3. The applicant shall pay the respondents' costs on the ordinary scale.

MAMBARA J:……

Chivandire Mavhaire and Zinto, applicant's legal practitioners
Mundiya & mudhara, respondents' legal practitioners